

OFFICE OF THE SECRETARY

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December 18, 2019

The Honorable Janice C. Croft
Judge of the Superior Court
County of Los Angeles
150 West Commonwealth Avenue
Alhambra, CA 91801

Re: Sebastian Adam Cruz aka Todd Carter
CDCR No: E80400
Case No: GA020271
Date of Sentence: January 11, 1996

Dear Honorable Janice C. Croft:

The purpose of this letter is to provide the court with the authority to resentence inmate Sebastian Cruz, E80400, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

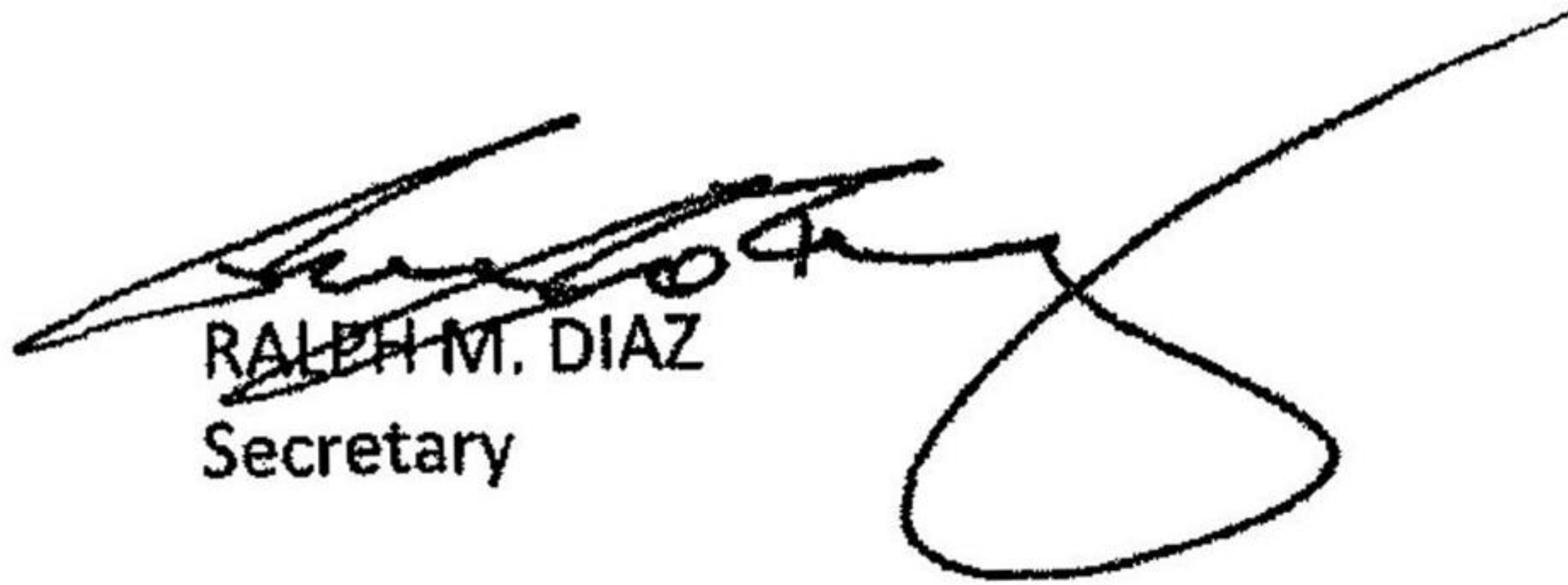
As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Cruz has received six serious Rules Violation Reports since his reception to CDCR on January 31, 1996 but has remained disciplinary free since December of 2014. Inmate Cruz is currently assigned to the California Prison Industry Authority (CAL-PIA) in Housekeeping. Inmate Cruz has participated in the Debate self-help group, Self-Awareness and Recovery, Narcotics Anonymous, Drumming I Visual and Performing Arts, and Spanish. Staff indicated inmate Cruz has good rapport with all staff, he is a hard worker, is pleasant to be around, and works all day at CAL-PIA but also asks to help around the housing unit when he returns from his assignment.

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Having reviewed the enclosed documentation it appears that inmate Cruz's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office